

UNIT ONE: INTRODUCTION TO ADMINISTRATIVE LAW

1.1 The Modern Welfare State and Evolution of Administrative Law

Administrative law is the by- product of the growing of socio- economic functions of the state and the increased powers of the government.

In **welfare state** it is necessary to confer more power on the administration and simultaneously the need for controlling this power.

Laissez Faire State; where government control is minimum, maximum free enterprise and contractual freedom. Its role was limited as a protector

The management of social and economic life was not regarded as government responsibility. However, the unequal bargaining power between labor and management resulted in exploitation of workers, dangerous conditions of work and child labor. The laissez faire state doctrine resulted in human misery.

Social Welfare State; where the active role of the state is considered as a vehicle of socio-economic- regeneration and welfare of the state. There exist higher level of state intervention, social control and regulation of individual enterprise.

A. Definition

The tremendous increase in the administrative process makes impossible to attempt any precise definition of ad law. However, two important facts should be taken into account in an attempt of understanding and defining administrative law.

- Firstly, administrative law is primarily concerned with the manner of exercising governmental power. The decision making process is more important than the decision itself.
- Secondly, administrative law cannot fully be defined without due regard to the functional approach. This means that the function (purpose) of administrative law should be the underlying element of any definition.

B) Purpose of Administrative Law

The ultimate purpose of administrative law is controlling exercise of governmental power. Controlling the manner of exercise of public power so as to ensure rule of law and respect for the right and liberty of individuals is the key purpose of administrative law.

C) Sources of Administration Law

1. The Constitution; the FDRE constitution contains some provisions dealing with the conduct and accountability of government, and the rule of law.

2. Legislation; Laws adopted by parliament, which may have the effect of creating an administrative agency, or specify specific procedure to be complied by the specific authority in exercising its powers, can be considered primary sources for the study of administrative law.

3. Delegated Legislation; Rules, directives and regulations issued by Council of Ministers and each administrative agencies are also the main focus of administrative law

1.3 Theories of the Administrative Law

A) Red Light Theory; the function of Ad law is to control the excesses of state power by the judiciary.

According to this theory of state, the best government is the one that governs least. Wider power means danger to the rights and liberty of citizens. Hence, the red- light theory serves the function of controlling excess and arbitrary power, mainly by the courts.

B) Green Light Theory; according to this theory the function of administrative law is to facilitate the operation of the state. Administrative law should aim to help simplifying the procedures and enhance efficiency. It starts from the standpoint of a more positive, largely social and democratic view of the state.

It regards law not as a controlling mechanism, rather as facilitative tool. Consequently, it considers the court's intervention as an obstacle to efficiency.

UNIT TWO: CONSTITUTIONAL FOUNDATION AND LIMITATION OF ADMINISTRATIVE LAW

2.1 Rule of Law as a Basis of Administrative Law

The primary meaning of rule of law is supremacy of the ordinary laws of the land over the actions of public officials and administrative agencies. It states that every administrative action that should be taken according to law

Government should operate within the confines of the law

B) Principle of Equality

It means equality before the law, or the equal subjection of all classes to the ordinary law of the land. The proper scope of the administrative law is procedure, not substance. This means, it is concerned with the decision-making procedure (how power is exercised), rather than the decision itself.

C) The Principle of Separation of Power

The doctrine of separation of powers means that none of the government, i.e., the legislative, executive and judicial should ever exercise the powers of the other.

According to the principle of separation of power

The same person should not form part of more than one of the three organs of the government; for example, ministers should not sit in parliament. B) One organ of the government should not interfere with any other organs of the government. For example, the executive should not interfere in the administration of justice by the courts. C) One organ of the government should not exercise the functions assigned to any other organ. For example, the executive branch cannot legislate laws, and as well it cannot adjudicate cases.

The Principle of Separation of Powers as a Limitation on Administrative Law

Ad law violates the principle Separation of Powers, since According to the principle of separation of powers, the power and function of this branch of government is limited to the execution or enforcement of laws. However, in order to ensure efficient and effective enforcement of laws, it has become a compulsive necessity to delegate the administrative agencies with additional legislative and judicial powers.

Delegation of legislative powers by the legislature is clearly against the principle of separation of powers. However, it is justified on practical grounds. The lack of time and expertise in the legislature to provide laws necessary to solve a certain social or economic problem practically makes the legislature compelled to transfer some of its legislative powers to the administrative agencies.

Granting legislative and judicial powers to agencies is an exception, or it may be said a “necessary evil”.

The legislative and judicial powers should be given and exercised narrowly. Essential legislative functions should not be delegated to agencies. Delegation of legislative powers should be limited only to the technical or detailed matters necessary to fill the gap in the law issued by the legislature. In this way, the principle serves to check the legislature not to delegate wider powers.

Similarly ordinary judicial powers should not be given to administrative agencies or administrative courts. It should be limited only to matters which are technical by nature and require expertise of the administration.

UNIT THREE: ADMINISTRATIVE AGENCIES: SUBJECTS

1. Nature of agencies

“The rise of administrative bodies probably has been the most significant legal trend of the last century and perhaps more values today are affected by their decisions than by those of all the courts . . . They have become a veritable fourth branch of government.” U.S. Supreme Court judge

2. The Meaning of Administrative Agency

Defining an administrative agency is not an easy task because of their wide ranging and complex functions and their power to legislate and adjudicate, in addition, to their normal executive powers, makes it challenging and difficult to precisely provide a precise and concise definition covering all these aspects of the administrative process.

Generally speaking, we may identify two important elements in distinguishing whether a certain government entity is an administrative agency or not.

- a. The nomenclature may be indicative of the status of an entity as an agency. Most agencies have names like department, authority, commission, bureau, board etc.
- b. The government entity should be empowered to legislate (through delegation), or adjudicate individual cases, in addition to its merely executive functions.

Generally, an entity is an agency if it has authority to take a binding action. Even though the above two elements are fulfilled, it is also important to check whether there is any express exclusion by the legislature.

If there is any dispute as to status of a certain governmental entity, resort has to be made to its nomenclature, and mainly to the existence of legislative and /or adjudicative power of that entity.

The following parameters should be used to determine whether a certain government entity is an agency or not.

- a. The nomenclature used to describe the entity is ministry, authority, agency, bureau, office, commission, board, etc., or any other similar terms.
- b. That it has legislative and/or adjudicative power granted by the legislature.
- c. That the head of the agency is appointed by the executive or by the house of people's representatives

i. Classification of Administrative Agencies

Agencies are classified or categorized based on such mode of accountability. Those agencies directly accountable to the executive branch are known as executive agencies, where those accountable to parliament are called independent agencies.

In Ethiopia, executive agencies are usually accountable to a certain ministry, or council of ministries, or the prime minister. Even though the enabling act may subject an agency to the control of another ministry, it has also to be noted that they are ultimately accountable to either the council of ministers, or to the prime minister. Since art 72(1) grants the highest executive authority to the Prime Minister and the Council of Ministers.

Independent agencies, are accountable to parliament, even though the establishment of these agencies, need the act of the house of people's representatives for their material and legal existence, its establishment predetermined by the constitution. This implies that their creation is not dependent on the will of the parliament.

The Federal Ombudsman

- The Human Right Commission
- The National Election Board
- The Auditor General
- The Population and Census Commission

With respect to these agencies it's parliament that has the right to appoint heads remove them if there are valid reasons.

The parliament retains exclusive right to bring a certain executive agency into existence, which includes the power to modify, increase, or decrease the power and function and to terminate that agency.

3. Formation of Administrative Agencies

A. Mode of Creating an Agency

It may be said that agencies are created in two ways: one is through the constitution, and the second is through act of parliament. The only difference between the two modes of creating an agency is that when the constitution requires the establishment of some agencies the house of people's representatives has a duty to promulgate the enabling act for that specific agency. When an agency is created only through the enabling act, in the absence of constitutional duty from the parliament, its existence is totally dependent on the will or option of the parliament.

Apart from these two modes, there is no other means of creating an agency. Neither the prime minister, nor the council of ministers has the power to create an administrative agency.

B. Reasons for the Creation of Agencies

i. Providing Specificity

Because of the fact that they have, specialized knowledge and expertise to deal effectively with the detailed, specific and technical matters, which are normally beyond the competency of the parliament. The legislative branch of government cannot legislate in sufficient detail to cover all aspects of many problems

ii. Providing Protection

Many government agencies exist to protect the public, especially from the business community. For instance, the Environmental Protection Agency is created to regulate environmental pollution.

iii. Providing Services

Many agencies are created simply out of necessity. If we are to have roads, the Ethiopian Roads Authority is necessary.

4. Structure and Organization

In Ethiopia, the constitution specifically authorizes the council of ministers to determine the structure and organization of the administrative agencies.

The purposes of the administrative agencies

- A) Regulation; Ad agencies are specialized bodies, they can consider technical details more effectively than the legislature.
- B) Provision of goods and services; the government is in charge of building and maintaining roads, high ways and dams, the provision of police force and other protective services.

5. Powers of Administrative Agencies

A. Nature and Source of Power of Administrative Agencies

At federal and state levels, administrative agencies gain whatever power they have by delegation-that is to say, that they don't have inherent, constitutionally mandated power to act.

Since the delegating body has such a wide degree of latitude in deciding how much power to delegate, there is no absolute rule as to how much power an agency has. If the question arises, the first step is to read the enabling legislation or decree, and subsequently granting or restricting its authority

B. Meaning and Significance of the Enabling (Establishment) Act

Whatever forms a new administrative agency takes the legislature must enact a statute creating the agency. This statute, sometimes called an agency's organic act, parent act, or establishment act or agency's enabling act which is the fundamental source of an agency's power.

6. Classification of Powers of Administrative Agencies

Administrative agencies, in order to realize their purpose efficiently and effectively, need wider power and discretion. For this reason, they blend together three powers of government: executive, legislative and judicial powers. Even though in principle the latter two powers belong to the legislature and courts, granting such powers has become a compulsive necessity for an effective and efficient administration.

The nature of the three powers of the administrative agencies

I. Legislative (Rule Making) Power

Legislative power of administrative agencies, usually known as rule-making power and more formally delegated legislation

The complex nature of the modern state is that such elected representatives are not capable of passing laws to govern every situation. Efficient and effective administration necessarily requires promulgation of laws, flexible to the existing situation and dealing with detailed technical matters.

II. Judicial (Decision – Making) Power

Enforcement of law demands imposition of sanction and taking administrative measures and decisions. When an agency exercises its judicial function it is engaged in adjudication, a process very much similar with a trial court. While adjudicating a case, it will conduct an oral hearing with direct and cross examination, administer oath, decide on the admissibility of evidence and

may compel an individual or a company to produce evidence. Still there is likelihood that agencies may abuse their decision-making power. As a result, the law maker, is expected to provide minimum procedures applicable in the adjudication process.

III. Administrative Power

Administrative power is the residual power that is neither legislative nor judicial. Advisory and investigative power of agencies may be mentioned as two typical examples of administrative power.

Advisory power; proposing a new legislation to the legislature, and informing the public prosecutor the need to take measure when there is violation of law. Disclosing information to the general public that should be known in the public interest and publishing advisory opinions are also regarded as advisory (administrative) functions.

Investigation power; is one of the major functions of administrative agencies. While exercising their investigative powers, agencies investigate activities and practices that may be illegal. Because of this investigative power, agencies can gather and compile information concerning the organization and business practices of any corporation or industry engaged in commerce to determine whether there has been a violation of any law.

In exercising their investigative functions, agencies may use the **Subpoena power;** commanding a person receiving it to appear at a specified time and place either to testify or to produce document require reports, examine witnesses under oath, examine and copy documents, or obtain information from other governmental offices under a penalty for the failure.

Currently, administrative agencies are established at the federal and state level. The constitution does not directly or indirectly make a reference to administrative agencies as parts of the system of government.

The constitution does not in any way allow the house of people's representatives to share or transfer some of its law making powers to agencies headed by unelected officials. Legislation through delegation is only mentioned with respect to the council of ministers.

UNIT FOUR

RULE-MAKING (QUASI-LEGISLATIVE) POWER OF ADMINISTRATIVE AGENCIES (DELEGATED LEGISLATION)

4.1 The Nature and Definition of Delegated Legislation

Delegated legislation means the exercise of legislative power by an agency that is subordinate to the legislature. Delegation of legislative powers means the transfer of law-making authority by the legislature to the executive, or to an administrative agency.

How do you distinguish administrative actions from quasi-legislative actions?

It is difficult to show there exists a fundamental difference between the two. Where the former is a process of performing particular acts or of making decisions involving the application of general rules to particular cases, the latter is the process of formulating a general rule of conduct without reference to particular cases and usually for future operation.

Can you try to identify impacts of retaining all legislative power by the lawmaker (parliament)?

A) Limitation on Parliamentary Time (art 58(2))

It is said that even if today parliament sits all the 365 days in a year and all the 24 hours, it may not give the quantity and quality of law, that which is required for the proper functioning of a modern government.

B) Technicality Subject of Matter

Members of the parliament are not experts, and so they cannot comprehend the technicality of the subject matter of some economic and social issues.

C) Flexibility

A law passed by parliament has to be in force till the next session of parliament when it can be replaced therefore, in situations which require adjustments frequently and experimentation, administrative rule making is the only answer.

D) Emergency

During emergency, it may not be possible for the parliament to pass necessary legislation to cope up with the situations. Under such conditions, speedy and appropriate action is required to be taken.

4.3. Theoretical Objections against Delegated Legislation

The main constitutional objection raised against delegation of rulemaking power to administrative agencies has been the doctrine of non-eligibility of power, which holds that power delegated to one branch may not be relegated to another. People elect their representatives based on their fitness, knowledge and ability to represent their interest. Hence, it is a generally accepted rule that this mandate bestowed by the people cannot be delegated to another individual or organ, which does not stand in a direct relation to the people.

Another objection to delegation of power is based on the doctrine of separation of powers. The powers entrusted to one department should be exercised exclusively by that department without encroaching up on the power of another.

4.4. Scope of Delegated Legislation

Legislative delegation raises the issue of delegable and non-delegable legislative powers. As a rule, it can be said that the legislature cannot delegate its general legislative power and matters dealing with policy. The legislature after formulating the fundamental laws, can delegate to administrative agencies the authority to fill in gaps which is an authority necessary to carry out their purposes. The matters which are appropriate for delegation are such matters as procedures for the implementation of the substantive provisions contained in the principal legislation. Subordinate legislation can cover only subject matters delegated expressly in the principal legislation. Essential legislative functions cannot be delegated by the legislature. Delegatee cannot have more legislative powers than that of the delegator.

4.5 Form and Classification of Administrative Rule Making

Delegated legislation may assume mainly two types of delegated legislations regulation and directive.

Regulation; the council of ministers has the power of issuing regulations in accordance with a power vested to it by the house of people's representatives art 71(13)

Directive; issued by each administrative agency to implement regulations and other primary legislations

4.6. Rule Making Procedure

In order to ensure power delegated by the legislature is exercised fairly and lawfully, the administrative agency is expected to follow some minimum rule making procedures.

The categories of rule-making can be **formal and informal proceedings**.

UNIT FIVE: JUDICIAL POWER OF ADMINISTRATIVE AGENCIES

5.1 The Meaning and Nature of Administrative Adjudication

Identifying whether a certain agency's function is judicial or not?

Judicial, because

Its decisions are conclusive; the decisions that administrative agencies render in their judicial capacities are conclusive in the sense that such decisions are binding on the parties in dispute without awaiting for further confirmation for any other authority.

Administrative agencies normally follow preset procedures.¹ The administrative forum to which such action is brought for determination is expected to entertain the parties' opinions, arguments and evidences as the case may be.

The decisions passed by **Administrative agencies** are based on pre-existing legal rules or laws.

Exclusions

Decisions made by these organs of the government in their respective spheres of powers are not within the domain of the administrative adjudication. Even decisions of the administrative agencies establishing rules and regulations are excluded from the spectrum of the administrative adjudication. Decisions of the FDRE President, for example, granting amnesty and decisions of the executive organ of the government related to the conduct of the military and foreign affairs are discretionary by their nature.

5.2 Forms of Administrative Adjudication

The decision may be preceded by full-blown formal hearings that are similar to court trials or an informal process, which is just like a summary proceeding where the participation of the parties is very minimal.

5.2.1 Informal Adjudication

The vast majority of administrative adjudications involve informal actions. Informal adjudication does not involve full-blown trial type hearing. Agencies are usually at liberty to adopt their own decision-making procedures having regard to the minimum requirements of due process of law or natural justice or fairness as such terms may be differently known in different jurisdictions.

¹ The procedure adopted for this purpose may be formal, which is more or less similar to the ordinary court procedures, or informal, which is a simplified procedure that provides only the minimal procedural safeguards to the persons subject to the decision.

Informal administrative adjudication offers only the minimal statutory safeguards of notice and hearing; and hearing in the majority of cases does not involve oral hearing, but written submission of opinions, arguments, or data.

5.2.2 Formal Adjudication

Formal adjudication may provide the following procedural safeguard to the respondent: Notification of charges; Notification of hearing; Representation by an attorney; an impartial tribunal/administrative law judge; Presentation of evidence; Cross examination of the witness of the agency; a decision based on the regulation.

There are circumstances where administrative agencies/tribunals are required to conduct a full-fledged formal administrative adjudication. They may be dictated to do so in the majority of cases by the enabling legislations or other related statutes, by the constitutional principles guarantying due process of law.

5.3 Tribunals and the Tribunal System

Tribunals are bodies established outside the structure of ordinary courts to adjudicate disputes that involve the government as a party on matters pertaining to governmental functions. The dispute could be between two or more government agencies, or between government agencies or between one or more individual parties.

Jurisdictional Issues

On the basis of the nature and scope of their jurisdiction, administrative tribunals can be classified into two. These are tribunals having general jurisdiction (general tribunals) and tribunals having special jurisdiction (special tribunals), that are established in special circumstances where the appropriate expertise does not exist in a general tribunal.

5.4 The Advantages and Disadvantages of Administrative Adjudication

There are possibilities where judicial power may be delegated to other bodies falling outside the structure of ordinary courts. See Articles 37(1) and 80(4 & 5) of the Constitution

The advantages of Administrative Adjudication

1. Expediency: administrative agencies are better than ordinary courts in disposing cases timely.
2. Administrative adjudication is cheaper than court adjudication
3. Administrative adjudication is more convenient and accessible to individuals compared to ordinary courts.
4. The process of adjudication in administrative agencies is flexible and informal compared to the rigid, stringent and much elaborated ordinary court procedures.
5. The special expertise knowledge administrative tribunals manifest as compared to ordinary court judges.

Disadvantages of Administrative Adjudication

1. **Lack of legal expertise:** many of the members of the panel are selected from different walks of life with no or little legal background; they may lack the requisite legal expertise to adjudicate disputes.
2. **Partiality:** The fear here is that, as many or all of the members of the administrative tribunals are at the same time employees of the various offices or agencies, they might not be free from bias and partiality towards the agency.
3. **Violation of the principle of separation of powers and rule of law:** Adjudication is the primary business of ordinary courts.

5.5 The Organizational Structure of Administrative Tribunals

There is no integrated administrative justice system. There are some sector wise tribunal-like adjudicating agencies/ known by different names such as disciplinary committees, boards, commissions and so on that have the first instance (original) jurisdiction in particular aspects of the administration. There are also tribunals that exercise appellate jurisdiction in particular sphere of the administrative field. E.g. The Civil Service Commission Tribunal that assumes appellate jurisdiction on complaints of civil servants brought from the various government organs or bureaus governed by the civil service law and the Tax Appeal Commission that hears tax related disputes on appeal are typical examples of the specialized jurisdiction administrative review tribunals. Although it may not fall within the technical definition of the term administrative tribunal as it is dealing with disputes between two or more individuals based on the ordinary substantive law of the country as contrasted to the administrative law.

5.6 Qualification, Appointment and Dismissal of Administrative Judges

There is no general requirement set governing the qualification, appointment, composition and tenure of the personnel of administrative tribunals in Ethiopia.

5.7 Inquiries

Inquires is impartial fact finding devices that are established by law to assist decision makers.

Some inquiries are event derived that have temporary existence that remain valid until accomplishing the specific fact finding assignment given to them by law. E.g. the Inquiry Commission established under proclamation No.398/2004 to investigate the conflict occurred in Gambela Regional State on December 13/2003.

There are also inquiries that have permanent in nature. Inquiries falling under this category, although they are usually with specific mandate, have permanent institutional existence. For instance;

- a. The Council of constitutional inquiry established by proclamation no. 250/2001
- b. The Human Rights Commission and the Institution of Ombudsman
- c. Anti-corruption commissions established at federal and regional levels

UNIT SIX

CONTROLLING MECHANISMS OF GOVERNMENTAL (Ad Agencies) POWERS

The concern of administrative law is regulating the powers of administrative agencies lest abuse of such powers may cause prejudice to public interest in general and to individual interest in particular.

6.1 The Need for Controlling the Powers of Government

In addition to the broad discretionary administrative powers originally entrusted to the executive organ and its agencies by the constitution, the delegation of rulemaking and adjudicating powers to these agencies, although may be justified by certain social and economic rationales, pose an inevitable threat on individual freedom and liberty.

The purpose of the principle of separation of power is to prevent any single branch of the government from becoming too powerful, providing a series of checks and balances; it is to curb despotism and arbitrariness and to promote liberty, democracy and good governance by creating a system of check and balance.

However, the doctrine of separation of state power among the three branches of government should not be interpreted in its extremity. Because of the various social, economic and political justifications the delegation of rulemaking and adjudicating powers to administrative agencies is becoming an inevitable and blessing phenomenon in this technologically advanced and complicated world. Thus, acknowledging the inevitability and importance of the delegation of relatively broad discretionary powers to administrative agencies in this complex world; appreciating the resultant possibilities of concentration of tripartite powers in the hands of a government agency, and the possibility these powers may be abused unless checked, there comes the need to devise the mechanism for controlling the powers of these agencies.

The existence of various checking mechanisms of power may induce administrative agencies to use the powers entrusted to them in the interest of the public.

6.2 Controlling Mechanisms

The diversification of the controlling mechanisms is partly justified by the perceived inadequacies of each mechanism to check the ever increasing involvement of the government in matters that affect the interest of the citizens

Putting the appropriate controlling or checking mechanisms in place would promote the following benefits:

1. Improves the quality, efficiency and effectiveness of government decision making generally
2. Enables people to test the legality and merits of decisions that affect them;
3. Provides mechanisms for ensuring that the government acts within its lawful powers
4. Provides mechanisms for achieving justice in individual cases and
5. Contributes to the accountability system for government decision-making

6.2.1 Internal control

IC refers to the type of controlling mechanisms that are set within the organizational structure of the various administrative organs of the government. Formally or informally, original decisions of the authorities within the lower structure of the administrative hierarchy are subjected to review by those in the next upper hierarchy. An internal review officer can usually substitute a new decision if the decision under review is found to be defective on matters of law, the merits or administrative process.

6.2.2 External control

EC refers to the various limitations imposed upon the powers of administrative agencies by other authorized bodies that are found outside the structure of such agencies.

1. Parliamentary Control

Having appreciated the side effects of delegation of rulemaking powers to administrative agencies, the parliament can put effective checking mechanism in place. First and foremost, the parliament has to make sure that all necessary precautions are taken that the enabling legislation/parent act does not devolve wide delegated powers which may be difficult to control. These include attaching riders to agency appropriation bills, conducting oversight hearings, reducing agency budgets, and amending statutes.

- As clearly stated in Article 55(17) of the FDRE Constitution, the legislature has the power to call and to question the Prime Minister and other Federal officials and to investigate the Executive's conduct and discharge of its responsibilities.
- The parliament can also exert control over the behavior of the government through the budgetary processes. When the parliament is not happy with the performance records of the past and /or the current fiscal year, it may resort to cutting off the proposed budget of the concerned agency for the next fiscal year.
- Many administrative agencies are formed by acts of the parliament (the parent act or enabling legislation). In the parent act, the legislature can specify the scope of the power entrusted to an agency and incorporate principles, guidelines and standards that regulate the decision-making process of the agency. In case of need, the legislature is also at liberty to demolish the agency by another legislative act.

2. Executive Control

There are possibilities whereby some administrative agencies may be formed by executive order without the blessing of the parliament. Those agencies or bureaus formed under the executive hierarchy (referred to as executive dependent agencies) are subject to the supervision of the executive organ of the government. So, the concerned ministry of the government can put different modalities of control to ensure whether or not the authorities formed under its hierarchy are acting within the bound of the law.

Article 77 (2); “Council of Ministers shall decide on the organizational structure of ministries and other organs of government responsible to it; it shall coordinate their activities and provide leadership”

The executive organ of the government may also exercise some indirect control over the so-called independent agencies that are accountable to the Legislative organ of the government. See Article 74(7) *the prime minister selects and submits for approval to the House of Peoples' Representatives nominations for posts of Commissioners, the President and Vice-President of the Federal Supreme Court and the Auditor General*

There are also dual accountability systems; as per Article 76(2) & (3) of the FDRE Constitution, the Council of Ministers are made jointly accountable to the Prime Minister and to the House of Peoples' Representatives, respectively.

3. Control by Administrative Tribunals

The decisions of administrative agencies can also be subjected to the supervision of administrative tribunals. Technically speaking, administrative tribunals also referred to as administrative courts: courts that are established outside the organizational structure of ordinary/regular courts. In terms of function, administrative tribunals are similar to ordinary courts, as both are entrusted with judicial power. Administrative tribunals undertake merits review over the decision of administrative agencies falling under the former jurisdiction, the overall objective of merits review system is to ensure that all administrative decisions of government are correct and preferable.

4. Judicial Control

The objective of the principle of the separation of powers is to promote the ideal of law, liberty and democracy by controlling circumstances that give rise to tyranny and dictatorship. The FDRE Constitution, among other things, vests judicial power in the judiciary. This means that the judiciary is made the final arbiter of disputes on point of law and facts. Individuals aggrieved by agency decisions may seek court intervention in appropriate cases.

Broadly speaking, there are two modalities by which the judiciary can exercise supervisory role over the powers of administrative agencies. These are appeal and judicial review. The judiciary is an important organ of the state machinery in controlling the powers of administrative agencies through its supervisory power (judicial review) and appellate power.

It is important to understand the main difference between appeal and review.

In appeal proceedings the court has the power to substitute its decision on the matter in issue for that of the body appealed from.

In review proceedings, on the other hand, the court's basic power in relation to an illegal decision is to quash it, that is, to hold it to be invalid. If any of the matters in issue have to be decided again, this must be done by the original deciding authority and not by the supervising court.

The second main distinction between appeal and review relates to the subject matter of the court's jurisdiction. Whereas an appellate court has power to decide whether the decision under appeal was "right or wrong" a court exercising supervisory powers may only decide whether the decision under review was "legal" or not. If the decision is illegal it can be quashed; otherwise the court cannot intervene, even if it thinks the decision to be wrong in some respect.

5. Control by Human Rights Commission and Ombudsman

FDRE Constitution under Sub- Articles 14 & 15 of Article 55 dictates the House of Peoples Representatives to establish the Human Rights Commission and the institution of Ombudsman respectively. Accordingly, the House established the Human Rights Commission and the Institution of Ombudsman in Proclamations No. 210/2000 & 211/2000, respectively

Human Rights Commission

Established by Human Rights Establishment Proclamation No.210/2000, according to art 5 the objective of the Commission is —to educate the public be aware of human rights, see to it that human rights are protected, respected and fully enforced as well as to have the necessary measure taken where they are found to have been violated.

Up on receiving complaints or when necessary on its own motion, the Commission may conduct investigation on alleged violations of human rights and is expected to make all the efforts to settle the complaint brought before it amicably. Although the Commission's recommendations are not binding. It can receive complaints concerning allegations of human rights violations formally and informally via different mediums of communications.

Ombudsman

The word ombudsman¹ which is Scandinavian in origin can be translated as citizen's defender or representative of the people.

By Proclamation No.211/2000, then HPR proclaimed the establishment of the Institution of ombudsman. As can be inferred from the preamble there are fundamental premises that necessitate the establishment of the institution of Ombudsman. These are:

- It appreciates the ever increasing powers and functions of the executive organs of the government and the effect of their decisions on the daily lives and rights of the citizens;
- It takes a firm stand that unjust decisions and orders of the executive organs and officials that prejudices the lives and rights of citizens have to be rectified or prevented;
- It appreciates the possibility that citizens having suffered from maladministration may be left without redressing unless supported by an institution, which is easily accessible to them.

The objective of the ombudsman is to bring about good governance that is of high quality, efficient and transparent, and are based on the rule of law, by way of ensuring that citizens' rights and benefits provided for by law are respected by organs of the executive.

See article 6; powers and duties of the ombudsman

The primary jurisdiction of the institution of Ombudsman is to investigate administrative actions or inactions following the lodging of complaints or on its own motion (initiation) with a view to ascertain whether there exists maladministration or not. The Institution is expected to resolve the complaints brought before it through a process of conciliation by bringing the parties together. Where the results of its investigation indicate the existence of maladministration, the institution is required to recommend the concerned agency to rectify the maladministration committed and to discontinue the act, practice, or directives having caused same.

In short, ensuring high quality of good governance in the administration system is the ideal goal of the Institution of Ombudsman in Ethiopia.

6. Mass Media Control

A strong media plays vital role in promoting the ideals of democracy and good governance. By bringing administrative malpractices and corrupt behaviors of the agencies to the attention of the public, the media may also exert moral and political pressure on the day-to-day activities of the administration.

UNIT SEVEN: JUDICIAL REVIEW

7.1 The Meaning and Nature of Judicial Review

Broadly speaking, the term judicial review may have the following two meanings: Higher court's review of a lower court's (or an administrative body's) factual or legal findings or Supreme Court's power to decide whether a law enacted by the legislature is constitutional or not.

JR meant the power of the court to supervise/ control the legality of the powers of administrative agencies. Judicial review is the exercise of the court's inherent power to determine whether an agency's action is lawful or not and to award suitable relief.

Judicial review is concerned with testing the legality of the administrative decisions. This means that courts are more expertise to review errors of law than errors of fact.

7.2. Judicial review Vs. Merits Review

The purpose of merits review action is to decide whether the decision which is being challenged was the correct and preferable decision. If not, the reviewing body can overrule such decision and substitute it with a new decision it deems correct and preferable under the given circumstance. The issue in merits review is to test whether decision complained is right or wrong.

Merits review is said to be the sole responsibility of the executive, because the person or tribunal conducting the review stands in the shoes of the original administrative decision maker

judicial review is a technical review; while reviewing an agency's decision, the court is concerned with the legality or illegality of the decision under review. If the court finds out the

decision against which review is sought is illegal or ultra vires, it can set it aside (quash) and order the concerned agency to reconsider the decision based on the directions of the court.

The fundamental principle of judicial review is that all power has its limits, and when administrative decision-makers act outside of those limits, they may be restrained by the judiciary.

7.3 The Bases of the Power of Courts to Supervise Administrative Action

Judicial review of administrative decision dwells in the fundamental principle of separation of power among the three conventional organs of the state: the legislature, the judiciary and the executive. Judicial review could be meaningful only when judicial power is ultimately vested in the judiciary and when the principle of rule of law reigns.

The Constitution of the Federal Democratic Republic of Ethiopia (FDRE) vested judicial powers both at federal and state levels in the courts. This is expressly stated under Article 79(1) of the Constitution. Thus, one may safely say that supreme judicial power under the FDRE is vested in the Judiciary. Being a final arbiter of the law, the judiciary can review and annul administrative decisions on grounds of legality.

7.4 Grounds of Judicial Review

1. A breach of the rules of natural justice
2. A failure to observe the procedures that were required by law to be observed in connection with the making of the decision
3. The person who purported to make the decision did not have jurisdiction to make the decision
4. If the law that the decision based violates its superior law
5. If a decision-making body acts ultra vires

An administrative decision may be rendered ultra vires due to substantive or procedural issues affecting the decision.

1. Substantive Ultra Vires

An administrative decision is said to be ultra vires in terms of substance where the decision maker exceeds the power duly entrusted to him/her in the public interests or where the subject

matter of the decision falls outside the jurisdictional limit of the decision-maker. Thus, where the decision maker passes decisions on matters falling outside the boundary of his statutory powers, there comes what we call substantive ultra vires.

2. Procedural Ultra Vires

The phrase procedural ultra vires refers to a decision passed disregarding mandatory (formal) procedural requirements. Procedural requirements could be obligatory (need strict compliance) or directory (provide direction to the decision-maker to be followed in at the discretion of the decision-maker in appropriate cases).

3. Jurisdictional Error

Jurisdictional error of law arises when, due to the wrong interpretation of the law, the decision maker exercises a power over a subject matter that actually did not fall under his jurisdiction.

4. Error of Law

7.5 Limitations on Judicial Review

In determining whether a particular issue is suitable for judicial review, the court is expected to consider all the factors listed above.

1. Locus standi

The applicant must have sufficient interest (*locus standi*) in the matter to which the application relates.

Who would be the applicants for judicial review?

Judicial review is available not only to citizens (individuals, corporations, trusts and so on) with grievances against government, but also to government bodies with a grievance against another government body. To be entitled to seek a remedy by way of judicial review an applicant must have sufficient interest (locus stander) at stake.

2. Justiciability

Justiciable controversy is a controversy in which a present and fixed claim of right is asserted against one who has an interest in contesting; rights must be declared upon existing state of facts and not upon state of facts that may or may not arise in future.¶ The justiciability of the controversy refers to the capability of the disputed state of fact to be resolved by the application or interpretation of existing laws. Courts are expected to entertain only issues that can be legitimately judicialized (justiciable issue) issues that can be conclusively resolved through the application or interpretation of laws in force.

3. Exhaustion and Ripeness

Judicial review is the last resort that can be invoked by a party aggrieved by the decision of an administrative body after exhausting all the avenues available in the concerned agency. The basic tenet behind this rule is that agencies must be given the opportunity to rectify their mistakes and resolve matters in light of their own policy objectives and priorities before judicial intervention.

4. Finality Clause

The legislature may in the parent act expressly preclude the power of regular courts to review decisions of the agency passed in such capacity. The exclusion has to be expressly stated if it is needed to have effect in limiting or eliminating the inherent power of the court.

UNIT EIGHT: REMEDIES AND GOVERNMENT (ADMINISTRATIVE) LIABILITY

8.1 Remedies

The term remedy in this context refers to the varieties of awards/relieves that may be granted by the reviewing court following an application for judicial review. A person complained against the agency decision has to include in his or her application for judicial review the type(s) of order or redress he/she sought from the reviewing court.

Remedies are Broadly Classified into Public Law Remedies and Private Law Remedies.

- 1. Public Law Remedies/Prerogative Orders;** include certiorari (a quashing order), prohibition (prohibiting order), mandamus (mandatory order), Quo Warrant, and Habeas Corpus,

A. Certiorari/Quashing Order

is a procedure through which the reviewing court investigates the legality of an agency's decision complained of, and will quash or nullify where the decision in question is found to be ultra vires.

If a person feels aggrieved because of ultra vires administrative acts affecting his interest, it is advisable for him or her to invoke judicial review within the allowable period of time lest the illegal administrative decision may be turned to legality after the expiry of the statutory period fixed for filing application for judicial review.

B. Prohibition

It is an order issued by a higher court to prevent an inferior tribunal or administrative authority from exceeding or from continuing to exceed its authority, or from behaving ultra-virally while dealing on matters that affect the interest of the complainant.

Thus, certiorari has retrospective effect - nullifying an already made illegal or ultra vires act, whereas prohibition has a prospective effect - it stops the continuity of an ongoing course of action or restrains the execution of an already made decision beforehand.

C. Mandamus/Mandatory Order

Mandamus is designed to enforce the performance by governmental bodies of their duties.

D. Quo Warranto

Challenging the usurpation of offices assumed in the interest of the public for self-interest.

E. Habeas Corpus/(Produce The Body)

It is a procedure through which an illegally detained person applies to the court requesting an order for his physical release.

2. Private (Ordinary) Law Remedies; include injunction, declaration and damages. It mainly concerned with the enforcement of private rights.

Each of these remedies listed above are not mutually exclusive. For instance; the applicant may, in appropriate cases, seek both certiorari (quashing order) and prohibition (prohibiting order) in

conjunction; for example, certiorari to quash the decision in question and prohibition to prevent the execution of the nullified decision or the taking of other particular action.

A. Injunction

B. Declaration

This is simply asking the court to make a ruling on what the law is. Declaration is now widely in use as a remedy in both private and public law cases. Its main purpose is to determine or ascertain what the law says without changing the legal position or rights of the parties.

C. Damages

Awarding damages in this context is to repair the pecuniary or non-pecuniary harm inflicted upon the complainant because of administrative wrongs. Damages are purely a private law remedy that can be claimed by the victim of a wrongful act in accordance with the dicta of private law.

8.2 Liability of the Administration

There is a possibility for suing the state, its administrative units. In Ethiopia liability of the state and its servants is not limited to fault based liabilities. There are cases where the state or its administrative sub-units may be held strictly and vicariously liable for the injury caused to third parties because of the dangerous activities it operated, or due to the official fault committed by its employees or servants during discharging their duties.

The state is contractually liable for damages it caused to a contracting party due to breach of its contractual obligation.

The end!

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